ARRANGEMENT OF SECTIONS

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IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], made the following by-laws:—

Title

1. These by-laws may be cited as the City of Masvingo (Cycle Licensing) By-laws, 2025.

Application

2. These by-laws shall apply to the area under the jurisdiction of the City of Masvingo.

Interpretation

3. In these by-laws—

"authorised person" means any person authorised by the Council to exercise any function conferred by these by-laws and includes a police officer;

"Council" means the City of Masvingo;

"Council area" means the area under the jurisdiction of City of Masvingo;

"cycle" means any pedal cycle or tri-cycle or motor cycle or a motor cycle with a trailer attached to it;

" licensing official" means a person appointed by the Council to receive licence fees and collect moneys payable under these by-laws;

"licence or token" means a badge on which is inscribed the year of issue, the licence number and the words "City of Masvingo";

"owner" in relation to any cycle includes the owner, joint owner or part owner of such cycle, and any person who has the lawful use of such cycle;

"road" includes, any existing street, bridge, subway, avenue, lane, footpath, sanitary lane, close or thoroughfare.

Application for licensing of cycles

4. (1) No person shall use on any road within the Council area any cycle which is ordinarily kept within the area unless it has been licensed in terms of these by-laws.

(2) The application for any cycle licence under these by-laws shall be made by the owner of the cycle to the licensing official and shall be accompanied by—

(a) the receipt or letter from whom the cycle is bought or obtained;

(b) name, address, make and manufacturers number, if any, of such cycle;

(c) the licence fees specified in the First Schedule; and

(d) when required, the applicant shall exhibit the cycle for which a licence is required at the office of the licensing official.

Licenses and licence tokens

5. (1) In respect of every cycle, the licensing official shall issue to the applicant a licence signed by the licensing official and shall contain the following—

(a) a description of the cycle to which the licence relates;

(b) the manufacturer ‘s number of the cycle;

(c) the council registration number;

(d) the number of the cycle licence with a distinctive mark;

(e) the receipt number; and

(f) period of validity.

(2) On the 1st of January in each year the owner of a cycle which is ordinarily kept and used on any road within the council area shall obtain a licence for the cycle.

(3) The period of validity of every licence shall terminate on the 31st of December in the year of isuue.

(4) The licensing official shall issue a serialised cycle licence.

Display of cycle token

6. (1) Every cycle owner shall firmly affix to the cycle in respect of which it is issued, in such a position and such manner as is prescribed by these by-laws.

(2) The owner of any cycle to whom a licence token is issued in terms of subsection (1) shall forthwith cause the token to be attached—

(a) to the left side of the hub on the front wheel of the cycle; or

(b) in the case of tricycle at the front, to the left side of the hub of the wheel on the left.

Duplicate cycle licence or token

7. (1) If a licence issued in terms of section 5(1) is lost or destroyed, the owner of the cycle to which it relates shall forthwith apply to the licensing official for a duplicate cycle licence.

(2) A duplicate cycle licence shall be issued to an applicant on proof of a licence accompanied by the fee prescribed by Council.

(3) A duplicate cycle licence or token shall be valid for the unexpired period of the original cycle licence.

Register of licences

8. Council shall keep a register of all cycles which have been licensed in terms of these by-laws and shall record in such register—

(a) the name and residential address or company address or the owner of such cycle; and

(b) the make, manufacturers number and the council registration number of such cycle; and

(c) the receipt, token number, date of issue of the licence and the date on which the licence shall expire.

Sale and change of ownership

9. (1) On the sale or change of ownership of any cycle, the person selling or disposing of the cycle shall deliver the relative cycle to the new owner and the new owner shall within fourteen days of his or her becoming the owner, register the change of ownership at the office of the licensing official and shall be accompanied by a police clearance and transfer fees prescribed by council from time to time.

(2) A duplicate cycle licence or token shall be valid for the unexpired period of the original cycle licence or token.

Exemption

10. Any cycle—

(a) which is kept by a dealer for the purpose of a sale only; or

(b) which is not used on any road;

(c) duly licensed by any local authority in Zimbabwe and bearing a cycle licence or token or other token issued by such local authority will;

(d) which has broken down and not in use:

Provided no change of ownership has taken place, be exempt from licence fees for the unexpired portion of the period for which the licence is current.

Inspections, enforcement and impoundment

11. (1) An authorised person may at any reasonable time enter upon any property where he or she suspects any cycle to be used on any road, within the council area in order to ascertain whether the provisions of these by-laws are not contravened.

(2) An authorised person may stop any cycle on any road for the purpose of inspecting a cycle licence or token and to ensure that the provisions of the by-laws are not contravened.

(3) An authorised person may if he or she has reason to believe that a violation of section 5 of these by-laws has been committed impound or cause to impound any cycle so connected to the offence and remove or cause to be removed such cycle to a secure place and such cycle shall be recorded in a records book and kept safely.

(4) An impounded cycle removed to a secure compound shall be released to the owner upon payment of the prescribed penalty and storage charges set by Council.

Cancellation of cycle licence

12. (1) Council shall cancel a certificate if the holder is penalised of any contravention of the provisions of these by-laws.

(2) Where the cycle licence or token is cancelled in terms of subsection (3) the holder shall return the cycle licence or token to the council within 48 hours of being given notice of such cancellation.

(3) Any person who fails to comply with the notice stated in subsection (5) shall be liable to a fine specified in the Second Schedule.

(4) Any person who contravenes any other provision of these by-laws not specified in subsection (1), shall be liable to a fine specified in the Second Schedule.

Disposal of unclaimed cycles

13. (1) Council shall publish in a newspaper of wide-circulation within the council area a list of unclaimed cycles which have been in its custody for one month and advise the owners to claim the cycles within 30 days.

(2) Council shall sell by public auction any cycles that remain unclaimed thirty (30) days after the notice has been published.

(3) Money realised from the sale of unclaimed cycles shall be deposited into any account of Council.

Offences

14. (1) Subject to the provisions of section 4(2), no person shall use or cause or permit to be used on any road, within the council area any cycle which is ordinarily kept within the council area unless a valid cycle licence issued in terms of section 5 is in force in respect of the cycle.

(2) No person shall use or cause or permit to be used on any road within the council area any cycle which is required to be licensed in terms of section 4 unless the cycle has a valid token issued in terms of section 5 affixed thereon.

(3) No person shall transfer a licence token issued in terms of section 5 to any other person, or from one cycle to another, or attach, or cause to be attached, any licence token so issued to any cycle other than the cycle to which it relates.

(4) No person shall obliterate, deface or alter any licence token issued in terms of these by-laws.

(5) No person shall obliterate, deface or alter any registration number impressed on any cycle in accordance with these by-laws.

(6) No person shall use or cause or allow to be used on any road within the Council area—

(a) any cycle which does not bear the licence token as provided in these by-laws; or

(b) any cycle upon which the registration number has been obliterated, defaced or altered.

Penalties

15. Any person who contravenes any section of this by-law these shall be liable to pay a fine specified in the Second Schedule.

FIRST SCHEDULE

FEES

Section	*Description*	*Fees* (US$)
4	Application for licence	$0,00
4	Licence fee	$5,00 per annum

Section	*Description*	*Fees* (US$)
7	Application for a duplicate licence	$0,00
9	Change of ownership fees	$5,00
11	Storage fees	$10,00

SECOND SCHEDULE

PENALTIES

Section	*Description*	*Fees* (US$)
4	Use of unlicenced cycle	$5,00
9	Failure to inform council of change of ownership	$5,00
15(2)	Failure to display token	$5,00
15(3)	Transfer a licence token to another	$5,00
15(4)	Obliterate, deface or alter any licence token	$5,00
15(5)	Obliterate, deface or alter any registration number impressed on any cycle	$5,00
15(6)	Failure to return a licence token	$5,00

The fines and penalties are payable in local currency at the prevailing interbank rate.